

December, 1926

QWRNYQ

25 Cents

# AMAZING STORIES

HUGO GERNSBACH  
EDITOR

\$500<sup>00</sup>

FOR THE MOST  
AMAZING  
STORY  
WRITTEN AROUND  
THIS  
PICTURE  
SEE PAGE 866



Stories by  
**H. G. WELLS**  
**GARRETT P. SERVISS**  
**A. HYATT VERRILL**

EXPERIMENTER PUBLISHING COMPANY, NEW YORK, PUBLISHERS OF  
RADIO NEWS - SCIENCE & INVENTION - RADIO REVIEW - AMAZING STORIES - MONEY MAKING - RADIO INTERNACIONAL

December, 1926



25 Cents

# AMAZING STORIES

HUGO GERNSBACK  
EDITOR

**\$500<sup>00</sup>**  
FOR THE MOST  
AMAZING  
STORY  
WRITTEN AROUND  
THIS  
PICTURE  
SEE PAGE 866



*Stories by*  
**H. G. WELLS**  
**GARRETT P. SERVISS**  
**A. HYATT VERRILL**

EXPERIMENTER PUBLISHING COMPANY, NEW YORK, PUBLISHERS OF  
RADIO NEWS • SCIENCE & INVENTION • RADIO REVIEW • AMAZING STORIES • MONEY MAKING • RADIO INTERNACIONAL

## **The Project Gutenberg eBook of The Man Higher Up**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Man Higher Up

Author: Edwin Balmer  
William MacHarg

Illustrator: Frank R. Paul

Release date: January 31, 2022 [eBook #67292]  
Most recently updated: October 18, 2024

Language: English

Original publication: United States: Experimenter Publishing Company,  
1926

Other information and formats: [www.gutenberg.org/ebooks/67292](http://www.gutenberg.org/ebooks/67292)

Credits: Roger Frank and Sue Clark

\*\*\* START OF THE PROJECT GUTENBERG EBOOK THE MAN  
HIGHER UP \*\*\*

## The Man Higher Up



Trant substituted for the photograph the bent wire given him by Miss Rowan. Then for the last time he swung to the instrument, and as his eyes caught the wildly vibrating pencils, they flared with triumph.

# The Man Higher Up

By Edwin Balmer and William B. MacHarg

Authors of "The Eleventh Hour" and "The Hammering Man"

This excellent detective scientific story is the first of a series to appear in AMAZING STORIES. These romances depict the achievement of Luther Trant, psychological detective.

While the results of psychic evidence have not as yet been accepted in our courts, there is no doubt that at a not-distant date such evidence will be given due importance in the conviction of our criminals. The authors of this tale are experts in their science and the series cannot fail to arouse your interest to the highest degree. A second story will appear in an early issue of AMAZING STORIES.

The first real blizzard of the winter had burst upon New York from the Atlantic. For seventy-two hours—as Rentland, chief clerk in the Broadway offices of the American Commodities Company, saw from the record he was making for President Welter—no ship of any of the dozen expected from foreign ports had been able to make the company's docks in Brooklyn, or indeed, had been reported at Sandy Hook. And for the last five days, during which the Weather Bureau's storm signals had stayed steadily set, no steamer of the six which had finished unloading at the docks the week before had dared to try for the open sea except one, the *Elizabethan Age*, which had cleared the Narrows on Monday night.

On land the storm was scarcely less disastrous to the business of the great importing company. Since Tuesday morning Rentland's reports of the car-and train-load consignments which had left the warehouses daily had been a monotonous page of trains stalled. But until that Friday morning, Welter—the big, bull-necked, thick-lipped master of men and money—had borne all the accumulated trouble of the week with serenity, almost with contempt. Only when the chief clerk added to his report the minor item that the 3,000-ton steamer, *Elizabethan Age*, which had cleared on Monday

night, had been driven into Boston, something suddenly seemed to “break” in the inner office. Rentland heard the president’s secretary telephone to Brooklyn for Rowan, the dock superintendent; he heard Welter’s heavy steps going to and fro in the private office, his hoarse voice raised angrily; and soon afterwards Rowan blustered in. Rentland could no longer overhear the voices. He went back to his own private office and called the station master at the Grand Central Station on the telephone.

“The seven o’clock train from Chicago?” the clerk asked in a guarded voice.

“It came in at 10:30, as expected? Oh, at 10:10! Thank you.” He hung up the receiver and opened the door to pass a word with Rowan as he came out of the president’s office.

“They’ve wired that the *Elizabethan Age* couldn’t get beyond Boston, Rowan,” he cried curiously.

“The ——— hooker!” The dock superintendent had gone strangely white; for the imperceptible fraction of an instant his eyes dimmed with fear, as he stared into the wondering face of the clerk, but he recovered himself quickly, spat offensively, and slammed the door as he went out. Rentland stood with clenching hands for a moment; then he glanced at the clock and hurried to the entrance of the outer office. The elevator was just bringing up from the street a red-haired, blue-gray-eyed young man of medium height, who, noting with a quick, intelligent glance the arrangement of the offices, advanced directly toward President Welter’s door. The chief clerk stepped forward quickly.

“You are Mr. Trant?”

“Yes.”

“I am Rentland. This way, please.” He led the psychologist to the little room behind the files, where he had telephoned the moment before.

“Your wire to me in Chicago, which brought me here,” said Trant, turning from the inscription “Chief Clerk” on the door to the dogged, decisive features and wiry form of his client, “gave me to understand that you wished to have me investigate the disappearance, or death, of two of your dock scale checkers. I suppose you were acting for President Welter—of whom I have heard—in sending for me?”

“No,” said Rentland, as he waved Trant to a seat. “President Welter is certainly not troubling himself to that extent over an investigation.”

“Then the company, or some other officer?” Trant questioned, with increasing curiosity.

“No; nor the company, nor any other officer in it, Mr. Trant.” Rentland smiled. “Nor even am I, as chief clerk of the American Commodities Company, overtroubling myself about those checkers,” he leaned nearer to Trant, confidentially, “but as a special agent for the United States Treasury Department I am extremely interested in the death of one of these men, and in the disappearance of the other. And for that I called you to help me.”

“As a secret agent for the Government?” Trant repeated, with rapidly rising interest.

“Yes; a spy, if you wish so to call me, but as truly in the ranks of the enemies to my country as any Nathan Hale, who has a statue in this city. To-day the enemies are the big, corrupting, thieving corporations like this company; and appreciating that, I am not ashamed to be a spy in their ranks, commissioned by the Government to catch and condemn President Welter, and any other officers involved with him, for systematically stealing from the Government for the past ten years, and for probable connivance in the murder of at least one of those two checkers so that the company might continue to steal.”

“To steal? How?”

“Customs frauds, thefts, smuggling—anything you wish to call it. Exactly what or how, I can’t tell; for that is part of what I sent for you to find out. For a number of years the Customs Department has suspected, upon circumstantial evidence, that the enormous profits of this company upon the thousand and one things which it is importing and distributing must come in part from goods they have got through without paying the proper duty. So at my own suggestion I entered the employ of the company a year ago to get track of the method. But after a year here I was almost ready to give up the investigation in despair, when Ed. Landers, the company’s checker on the docks in scale house No. 3, was killed—accidentally, the coroner’s jury said. To me it looked suspiciously like murder. Within two weeks Morse, who was appointed as checker in his place, suddenly disappeared. The company’s officials showed no concern as to the fate of these two men; and my suspicions that something crooked might be going on at scale house No. 3 were strengthened; and I sent for you to help me to get at the bottom of things.”

“Is it not best then to begin by giving me as fully as possible the details of the employment of Morse and Landers, and also of their disappearance?” the young psychologist suggested.

“I have told you these things here, Trant, rather than take you to some safer place,” the secret agent replied, “because I have been waiting for some one who can tell you what you need to know better than I can. Edith Rowan, the stepdaughter of the dock superintendent, knew Landers well, for he boarded at Rowan’s house. She was—or is, if he still lives—engaged to Morse. It is an unusual thing for Rowan himself to come here to see President Welter, as he did just before you came; but every morning since Morse disappeared his daughter has come to see Welter personally. She is already waiting in the outer office.” Opening the door, he indicated to Trant a light-haired, overdressed, nervous girl twisting about uneasily on the seat outside the president’s private office.

“Welter thinks it policy, for some reason, to see her a moment every morning. But she always comes out almost at once—crying.”

“This is interesting,” Trant commented, as he watched the girl go into the president’s office. After only a moment she came out, crying. Rentland had already left his room, so it seemed by chance that he and Trant met and supported her to the elevator, and over the slippery pavement to a neat electric coupé which was standing at the curb.

“It’s hers,” said Rentland, as Trant hesitated before helping the girl into it. “It’s one of the things I wanted you to see. Broadway is very slippery, Miss Rowan. You will let me see you home again this morning? This gentleman is Mr. Trant, a private detective. I want him to come along with us.”

The girl acquiesced, and Trant crowded into the little automobile. Rentland turned the coupé skillfully out into the swept path of the street, ran swiftly down Fifth Avenue to Fourteenth Street, and stopped three streets to the east before a house in the middle of the block. The house was as narrow and cramped and as cheaply constructed as its neighbors on both sides. It had lace curtains conspicuous in every window, and with impressive statuettes, vases, and gaudy bits of bric-a-brac in the front rooms.

“He told me again that Will must still be off drunk; and Will never takes a drink,” she spoke to them for the first time, as they entered the little sitting room.

“‘He’ is Welter,” Rentland explained to Trant. “‘Will’ is Morse, the missing man. Now, Miss Rowan, I have brought Mr. Trant with me because I have asked him to help me find Morse for you, as I promised; and I want you to tell him everything you can about how Landers was killed and how Morse disappeared.”

“And remember,” Trant interposed, “that I know very little about the American Commodities Company.”

“Why, Mr. Trant,” the girl gathered herself together, “you cannot help knowing something about the company! It imports almost everything—tobacco, sugar, coffee, olives, and preserved fruits, oils, and all sorts of table delicacies, from all over the world, even from Borneo, Mr. Trant, and from Madagascar and New Zealand. It has big warehouses at the docks with millions of dollars’ worth of goods stored in them. My stepfather has been with the company for years, and has charge of all that goes on at the docks.”

“Including the weighing?”

“Yes; everything on which there is a duty when it is taken off the boats has to be weighed, and to do this there are big scales, and for each one a scale house. When a scale is being used there are two men in the scale house. One of these is the Government weigher, who sets the scale to a balance and notes down the weight in a book. The other man, who is an employee of the company, writes the weight also in a book of his own; and he is called the company’s checker. But though there are half a dozen scales, almost everything, when it is possible, is unloaded in front of Scale No. 3, for that is the best berth for ships.”

“And Landers?”

“Landers was the company’s checker on scale No. 3. Well, about five weeks ago I began to see that Mr. Landers was troubled about something. Twice a queer, quiet little man with a scar on his cheek came to see him, and each time they went up to Mr. Landers’ room and talked a long while. Ed’s room was over the sitting room, and after the man had gone I could hear him walking back and forth—walking and walking until it seemed as though he would never stop. I told father about this man who troubled Mr. Landers, and he asked him about it, but Mr. Landers flew into a rage and said it was nothing of importance. Then one night—it was a Wednesday—everybody stayed late at the docks to finish unloading the steamer *Covallo*. About two o’clock father got home, but Mr. Landers had not been ready to

come with him, He did not come all that night, and the next day he did not come home.

“Now, Mr. Trant, they are very careful at the warehouses about who goes in and out, because so many valuable things are stored there. On one side the warehouses open on the docks, and at each end they are fenced off so that you cannot go along the docks and get away from them that way; and on the other side they open on the street through great driveway doors, and at every door, as long as it is open, there stands a watchman, who sees everybody that goes in and out. Only one door was open that Wednesday night, and the watchman there had not seen Mr. Landers go out. And the second night passed, and he did not come home. But the next morning, Friday morning,” the girl caught her breath hysterically, “Mr. Landers’ body was found in the engine room back of scale house No. 3, with the face crushed in horribly!”

“Was the engine room occupied?” said Trant, quickly. “It must have been occupied in the daytime, and probably on the night when Landers disappeared, as they were unloading the *Covallo*. But on the night after which the body was found—was it occupied that night?”

“I don’t know, Mr. Trant. I think it could not have been, for after the verdict of the coroner’s jury, which was that Mr. Landers had been killed by some part of the machinery, it was said that the accident must have happened either the evening before, just before the engineer shut off his engines, or the first thing that morning, just after he had started them; for otherwise somebody in the engine room would have seen it.”

“But where had Landers been all day Thursday, Miss Rowan, from two o’clock on the second night before, when your father last saw him, until the accident in the engine room?”

“It was supposed he had been drunk. When his body was found, his clothes were covered with fibers from the coffee-sacking, and the jury supposed he had been sleeping off his liquor in the coffee warehouse during Thursday. But I had known Ed Landers for almost three years, and in all that time I never knew him to take even one drink.”

“Then it was a very unlikely supposition. You do not believe in that accident, Miss Rowan?” Trant said, brusquely.

The girl grew white as paper. “Oh, Mr. Trant, I don’t know! I did believe in it. But since Will—Mr. Morse—has disappeared in exactly the same way,

under exactly the same circumstances, and everyone acts about it exactly the same way—”

“You say the circumstances of Morse’s disappearance were the same?” Trant pressed quietly when she was able to proceed.

“After Mr. Landers had been found dead,” said the girl, pulling herself together again, “Mr. Morse, who had been checker in one of the other scale houses, was made checker on scale No. 3. We were surprised at that, for it was a sort of promotion, and father did not like Will; he had been greatly displeased at our engagement. Will’s promotion made us very happy, for it seemed as though father must be changing his opinion. But after Will had been checker on scale No. 3 only a few days, the same queer, quiet little man with the scar on his cheek who had begun coming to see Mr. Landers before he was killed began coming to see Will, too! And after he began coming, Will was troubled, terribly troubled, I could see; but he would not tell me the reason. And he expected, after that man began coming, that something would happen to him. And I know, from the way he acted and spoke about Mr. Landers, that he thought he had not been accidentally killed. One evening, when I could see he had been more troubled than ever before, he said that if anything happened to him I was to go at once to his boarding house and take charge of everything in his room, and not to let anyone into the room to search it until I had removed everything in the bureau drawers; everything no matter how useless anything seemed. Then, the very next night, five days ago, just as while Mr. Landers was checker, everybody stayed overtime at the docks to finish unloading a vessel, the *Elizabethan Age*. And in the morning Will’s landlady called me on the phone to tell me that he had not come home. Five days ago, Mr. Trant! And since then no one has seen or heard from him; and the watchman did not see him come out of the warehouse that night just as he did not see Ed Landers.”

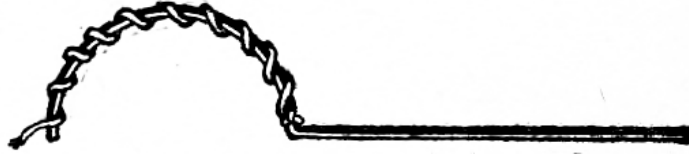
“What did you find in Morse’s bureau?” asked Trant.

“I found nothing.”

“Nothing?” Trant repeated. “That is impossible, Miss Rowan! Think again! Remember he warned you that what you found might seem trivial and useless.”

The girl, a little defiantly, studied for an instant Trant’s clear-cut features. Suddenly she arose and ran from the room, but returned quickly with a strange little implement in her hand.

It was merely a bit of wire, straight for perhaps three inches, and then bent in a half circle of five or six inches, the bent portion of the wire being wound carefully with stout twine, thus:



The mysterious string-wrapped piece of bent wire.

“Except for his clothes and some blank writing paper and envelopes that was absolutely the only thing in the bureau. It was the only thing at all in the only locked drawer.”

Trant and Rentland stared disappointedly at this strange implement, which the girl handed to the psychologist.

“You have shown this to your stepfather, Miss Rowan, for a possible explanation of why a company checker should be so solicitous about such a thing as this?” asked Trant.

“No,” the girl hesitated. “Will had told me not to say anything; and I told you father did not like Will. He had made up his mind that I was to marry Ed Landers. In most ways father is kind and generous. He’s kept the coupé we came here in for mother and me for two years; and you see,” she gestured a little proudly about the bedecked and badly furnished rooms, “you see how he gets everything for us. Mr. Landers was most generous, too. He took me to the theaters two or three times every week—always the best seats, too. I didn’t want to go, but father made me. I preferred Will, though he wasn’t so generous.”

Trant’s eyes returned, with more intelligent scrutiny, to the mysterious implement in his hand.

“What salary do checkers receive, Rentland?” he asked, in a low tone.

“One hundred and twenty-five dollars a month.”

“And her father, the dock superintendent—how much?” Trant’s expressive glance now jumping about from one gaudy, extravagant trifle in the room to another, caught a glimpse again of the electric coupé standing in the street, then returned to the tiny bit of wire in his hand.

“Three thousand a year,” Rentland replied.

“Tell me, Miss Rowan,” said Trant, “this implement—have you by any chance mentioned it to President Welter?”

“Why, no, Mr. Trant.”

“You are sure of that? Excellent! Excellent! Now the queer, quiet little man with the scar on his cheek who came to see Morse; no one could tell you anything about him?”

“No one, Mr. Trant; but yesterday Will’s landlady told me that a man has come to ask for Will every forenoon since he disappeared, and she thinks this may be the man with the scar, though she can’t be sure, for he kept the collar of his overcoat up about his face. She was to telephone me if he came again.”

“If he comes this morning,” Trant glanced quickly at his watch, “you and I, Rentland, might much better be waiting for him over there.”

The psychologist rose, putting the bent, twine-wound bit of wire carefully into his pocket; and a minute later the two men crossed the street to the house, already known to Rentland, where Morse had boarded. The landlady not only allowed them to wait in her little parlor, but waited with them until at the end of an hour she pointed with an eager gesture to a short man in a big ulster who turned sharply up the front steps.

“That’s him—see!” she exclaimed.

“That the man with the scar!” cried Rentland. “Well! I know him.”

He made for the door, caught at the ulster and pulled the little man into the house by main force.

“Well, Dickey!” the secret agent challenged, as the man faced him in startled recognition. “What are you doing in this case? Trant, this is Inspector Dickey, of the Customs Office,” he introduced the officer.

“I’m in the case on my own hook, if I know what case you’re talking about,” piped Dickey. “Morse, eh? and the American Commodities Company, eh?”

“Exactly,” said Rentland, brusquely. “What were you calling to see Landers for?”

“You know about that?” The little man looked up sharply. “Well, six weeks ago Landers came to me and told me he had something to sell; a secret system for beating the customs. But before we got to terms, he began losing his nerve a little; he got it back, however, and was going to tell me when, all at once, he disappeared, and two days later he was dead! That

made it hotter for me; so I went after Morse. But Morse denied he knew anything. Then Morse disappeared, too.”

“So you got nothing at all out of them?” Rentland interposed.

“Nothing I could use. Landers, one time when he was getting up his nerve, showed me a piece of bent wire—with string around it—in his room, and began telling me something when Rowan called him, and then he shut up.”

“A bent wire!” Trant cried, eagerly. “Like this?” He took from his pocket the implement given him by Edith Rowan. “Morse had this in his room, the only thing in a locked drawer.”

“The same thing!” Dickey cried, seizing it. “So Morse had it, too, after he became checker at scale No. 3, where the cheating is, if anywhere. The very thing Landers started to explain to me, and how they cheated the customs with it. I say, we must have it now, Rentland! We need only go to the docks and watch them while they weigh, and see how they use it, and arrest them and then we have them at last, eh, old man?” he cried in triumph. “We have them at last!”

“You mean,” Trant cut in upon the customs man, “that you can convict and jail perhaps the checker, or a foreman, or maybe even a dock superintendent—as usual. But the men higher up—the big men who are really at the bottom of this business and the only ones worth getting—will you catch them?”

“We must take those we can get,” said Dickey sharply.

Trant laid his hand on the little officer’s arm.

“I am a stranger to you,” he said, “but if you have followed some of the latest criminal cases in Illinois perhaps you know that, using the methods of modern practical psychology, I have been able to get results where old ways have failed. We are front to front now with perhaps the greatest problem of modern criminal catching, to catch, in cases involving a great corporation, not only the little men low down who perform the criminal acts, but the men higher up, who conceive, or connive at the criminal scheme. Rentland, I did not come here to convict merely a dock foreman; but if we are going to reach anyone higher than that, you must not let Inspector Dickey excite suspicion by prying into matters at the docks this afternoon!”

“But what else can we do?” said Rentland, doubtfully.

“Modern practical psychology gives a dozen possible ways for proving the knowledge of the man higher up in this corporation crime,” Trant answered, “and I am considering which is the most practicable. Only tell me,” he demanded suddenly; “Mr. Welter I have heard is one of the rich men of New York who make it a fad to give largely to universities and other institutions; can you tell me with what ones he may be most closely interested?”

“I have heard,” Rentland replied, “that he is one of the patrons of the Stuyvesant School of Science. It is probably the most fashionably patroned institution in New York; and Welter’s name, I know, figures with it in the newspapers.”

“Nothing could be better!” Trant exclaimed. “Kuno Schmalz has his psychological laboratory there. I see my way now, Rentland; and you will hear from me early in the afternoon. But keep away from the docks!” He turned and left the astonished customs officers abruptly. Half an hour later the young psychologist sent in his card to Professor Schmalz in the laboratory of the Stuyvesant School of Science. The German, broad-faced, spectacled, beaming, himself came to the laboratory door.

“Is it Mr. Trant—the young, apt pupil of my old friend, Dr. Reiland?” he boomed, admiringly. “Ach! luck is good to Reiland! For twenty years I, too, have shown them in the laboratory how fear, guilt, every emotion causes in the body reactions which can be measured. But do they apply it? Pouf! No! it remains to them all impractical, academic, because I have only nincompoops in my classes!”

“Professor Schmalz,” said Trant, following him into the laboratory, and glancing from one to another of the delicate instruments with keen interest, “tell me along what line you are now working.”

“Ach! I have been for a year now experimenting with the plethysmograph and the pneumograph. I make a taste, I make a smell, or I make a noise to excite feeling in the subject; and I read by the plethysmograph that the volume of blood in the hand decreases under the emotions and that the pulse quickens; and by the pneumograph I read that the breathing is easier or quicker, depending on whether the emotions are pleasant or unpleasant. I have performed this year more than two thousand of those experiments.”

“Good! I have a problem in which you can be of the very greatest use to me; and the plethysmograph and the pneumograph will serve my purpose as

well as any other instruments in the laboratory. For no matter how hardened a man may be, no matter how impossible it may have become to detect his feelings in his face or bearing, he cannot prevent the volume of blood in his hand from decreasing, and his breathing from becoming different, under the influence of emotions of fear or guilt. By the way, professor, is Mr. Welter familiar with these experiments of yours?”

“What, he!” cried the stout German. “For why should I tell him about them? He knows nothing. He has bought my time to instruct classes; he has not bought, py chiminey! everything—even the soul Gott gave me!”

“But he would be interested in them?”

“To be sure, he would be interested in them! He would bring in his automobile three or four other fat money-makers, and he would show off before them. He would make his trained bear—that is me—dance!”

“Good!” cried Trant again, excitedly. “Professor Schmalz, would you be willing to give a little exhibition of the plethysmograph and pneumograph, this evening, if possible, and arrange for President Welter to attend it?”

The astute German cast on him a quick glance of interrogation. “Why not?” he said. “It makes nothing to me what purpose you will be carrying out; no, py chiminey! not if it costs me my position of trained bear; because I have confidence in my psychology that it will not make any innocent man suffer!”

“And you will have two or three scientists present to watch the experiments? And you will allow me to be there also and assist?”

“With great pleasure.”

“But, Professor Schmalz, you need not introduce me to Mr. Welter, who will think I am one of your assistants.”

“As you wish about that, pupil of my dear old friend.”

“Excellent!” Trant leaped to his feet. “Provided it is possible to arrange this with Mr. Welter, how soon can you let me know?”

“Ach! it is as good as arranged, I tell you. His vanity will arrange it if I assure the greatest publicity—”

“The more publicity the better.”

“Wait! It shall be fixed before you leave here.”

The professor led the way into his private study, telephoned to the president of the American Commodities Company, and made the appointment without trouble.

A few minutes before eight o'clock that evening Trant again mounted rapidly the stone steps to the professor's laboratory. The professor and two others, who were bending over a table in the center of the room, turned at his entrance. President Welter had not yet arrived. The young psychologist acknowledged with pleasure the introduction to the two scientists with Schmalz. Both of them were known to him by name, and he had been following with interest a series of experiments, which the elder, Dr. Annerly, had been reporting in a psychological journal. Then he turned at once to the apparatus on the table.

He was still examining the instruments when the noise of a motor car stopping at the door warned him of the arrival of President Welter's party. Then the laboratory door opened and the party appeared. They also were three in number; stout men, rather obtrusively dressed, in jovial spirits, with strong faces flushed now with the wine they had taken at dinner.

"Well, professor, what fireworks are you going to show us to-night?" asked Welter, patronizingly. "Schmalz," he explained to his companions, "is the chief ringmaster of this circus."

The bearded face of the German grew purple under Welter's jokingly overbearing manner; but he turned to the instruments and began to explain them. The pneumograph, which the professor first took up, consists of a very thin flexible brass plate suspended by a cord around the neck of the person under examination, and fastened tightly against the chest by a cord circling the body. On the outer surface of this plate are two small, bent levers, connected at one end to the cord around the body of the subject, and at the other end to the surface of a small hollow drum fastened to the plate between the two. As the chest rises and falls in breathing, the levers press more and less upon the surface of the drum; and this varying pressure on the air inside the drum is transmitted from the drum through an airtight tube to a little pencil which it lowers and raises. The pencil, as it rises and falls, touching always a sheet of smoked paper traveling over a cylinder on the recording device, traces a line whose rising strokes represent accurately the drawing of air into the chest and whose falling represents its expulsion.

It was clear to Trant that the professor's rapid explanation, though plain enough to the psychologists already familiar with the device, was only partly understood by the big men. It had not been explained to them that changes in the breathing so slight as to be imperceptible to the eye would be recorded unmistakably by the moving pencil.

Professor Schmalz turned to the second instrument. This was a plethysmograph, designed to measure the increase or decrease of the size of one finger of a person under examination as the blood supply to that finger becomes greater or less. It consists primarily of a small cylinder so constructed that it can be fitted over the finger and made airtight. Increase or decrease of the size of the finger then increases or decreases the air pressure inside the cylinder. These changes in the air pressure are transmitted through an airtight tube to a delicate piston which moves a pencil and makes a line upon the record sheet just under that made by the pneumograph. The upward or downward trend of this line shows the increase or decrease of the blood supply, while the smaller vibrations up and down record the pulse beat in the finger.

There is still a third pencil touching the record sheet above the other two and wired electrically to a key like that of a telegraph instrument fastened to the table. When this key is in its normal position this pencil makes simply a straight line upon the sheet; but instantly when the key is pressed down, the line breaks downward also.

This third instrument is used merely to record on the sheet, by the change in the line, the point at which the object that arouses sensation or emotion is displayed to the person undergoing examination.

The instant's silence which followed Schmalz's rapid explanation was broken by one of Welter's companions with the query:

"Well, what's the use of all this stuff, any way?"

"Ach!" said Schmalz, bluntly, "it is interesting, curious! I will show you."

"Will one of you gentlemen," said Trant, quickly, "permit us to make use of him in the demonstration?"

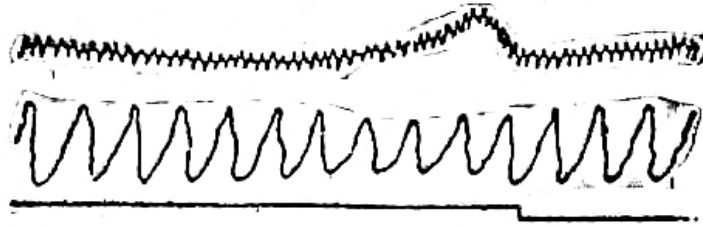
"Try it, Jim," Welter laughed, noisily.

"Not I," said the other. "This is your circus."

"Yes, indeed it's mine. And I'm not afraid of it. Schmalz, do your worst!" He dropped, laughing, into the chair the professor set for him, and at Schmalz's direction unbuttoned his vest. The professor hung the pneumograph around his neck and fastened it tightly about the big chest. He laid Welter's forearm in a rest suspended from the ceiling, and attached the cylinder to the second finger of the plump hand. In the meantime Trant had

quickly set the pencils to bear upon the record sheet and had started the cylinder on which the sheet traveled under them.

“You see, I have prepared for you.” Schmalz lifted a napkin from a tray holding several little dishes. He took from one of these a bit of caviar and laid it upon Welter’s tongue. At the same instant Trant pushed down the key. The pencils showed a slight commotion, and the spectators stared at this record sheet!



“Ach!” exclaimed Schmalz, “you do not like caviar.”

“How do you know that?” demanded Welter.

“The instruments show that at the unpleasant taste you breathe less freely—not so deep. Your finger, as under strong sensation or emotions, grows smaller, and your pulse beats more rapidly.”

“By the Lord! Welter, what do you think of that?” cried one of his companions; “Your finger gets smaller when you taste caviar!”

It was a joke to them. Boisterously laughing, they tried Welter with other food upon the tray; they lighted for him one of the black cigars of which he was most fond, and watched the trembling pencils write the record of his pleasure at the taste and smell. Through it all Trant waited, alert, watchful, biding the time to carry out his plan. It came when, having exhausted the articles at hand, they paused to find some other means to carry on the amusement. The young psychologist leaned forward suddenly.

“It is no great ordeal after all, is it, Mr. Welter?” he said. “Modern psychology does not put its subjects to torture like”—he halted, meaningly—“*a prisoner in the Elizabethan Age!*”

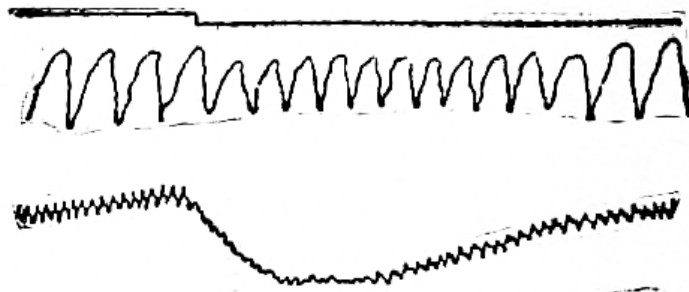
Dr. Annerly, bending over the record sheet, uttered a startled exclamation. Trant, glancing keenly at him, straightened triumphantly. But the young psychologist did not pause. He took quickly from his pocket a photograph, showing merely a heap of empty coffee sacks piled carelessly to a height of some two feet along the inner wall of a shed, and laid it in

front of the subject. Welter's face did not alter; but again the pencils shuddered over the moving paper, and the watchers stared with astonishment. Rapidly removing the photograph, Trant substituted for it the bent wire given him by Miss Rowan. Then for the last time he swung to the instrument, and as his eyes caught the wildly vibrating pencils, they flared with triumph.

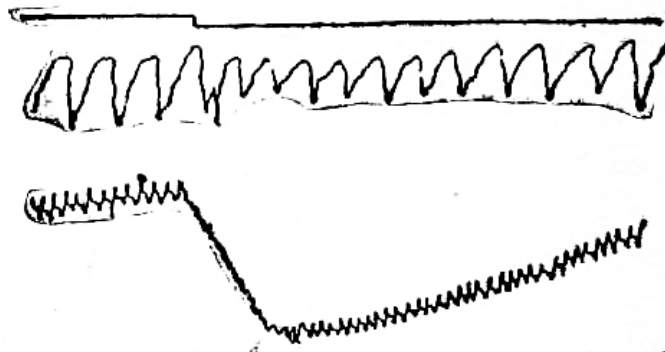
President Welter rose abruptly, but not too hurriedly. "That's about enough of this tomfoolery," he said, with perfect self-possession.

His jaw had imperceptibly squared to the watchful determination of the prize fighter driven into his corner. His cheek still held the ruddy glow of health; but the wine flush had disappeared from it, and he was perfectly sober.

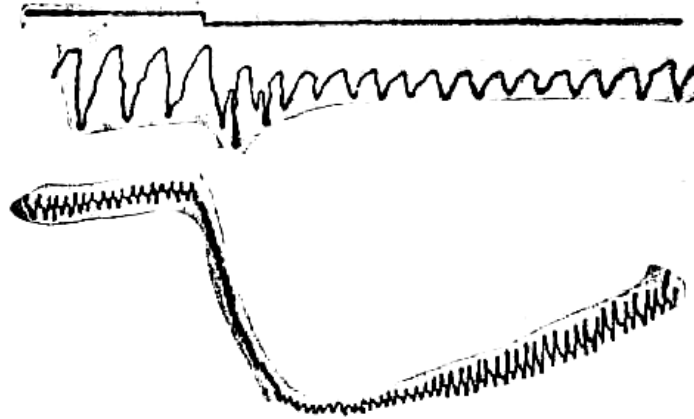
Trant tore the strip of paper from the instrument, and numbered the last three reactions 1, 2, 3. This is the way the records looked:



Record of the reaction when Trant said: "A prisoner in the  
*Elizabethan Age!*"



Record made when Welter saw the photograph of a heap of  
coffee sacks.



Record made when the spring was shown to Welter.

“Amazing!” said Dr. Annerly. “Mr. Welter, I am curious to know what associations you have with that photograph and bent wire, the sight of which aroused in you such strong emotion.”

By immense self-control, the president of the American Commodities Company met his eyes fairly. “None,” he answered.

“Impossible! No psychologist, knowing how this record was taken, could look at it without feeling absolutely certain that the photograph and spring caused in you such excessive emotion that I am tempted to give it, without further words, the name of ‘intense fright!’ But if we have inadvertently surprised a secret, we have no desire to pry into it further. Is it not so, Mr. Trant?”

At the name President Welter whirled suddenly. “Trant! Is your name Trant?” he demanded. “Well, I’ve heard of you.” His eyes hardened. “A man like you goes just so far, and then—somebody stops him!”

“As they stopped Landers?” Trant inquired.

“Come, we’ve seen enough, I guess,” said President Welter, and, including for one instant in his now frankly menacing gaze both Trant and Professor Schmalz, turned to the door, closely followed by his companions. And a moment later the quick explosions of his automobile were heard. At the sound, Trant seized suddenly a large envelope, dropped into it the photograph and wire he had just used, sealed, signed, and dated it, signed and dated also the record from the instruments, and hurriedly handed all to Dr. Annerly.

“Doctor, I trust this to you,” he cried, excitedly. “It will be best to have them attested by all three of you. If possible get the record photographed to-

night, and distribute the photographs in safe places. Above all, do not let the record itself out of your hands until I come for it. It is important—extremely important! As for me, I have not a moment to lose!”

He seized his hat and dashed from the room, leaving them in an astonished group.

The young psychologist sped down the stone steps of the laboratory three at a time, ran at top speed to the nearest street corner, turned it and leaped into a waiting taxicab. “The American Commodities Company’s dock in Brooklyn,” he shouted, “and never mind the speed limits!”

Rentland and the chauffeur, awaiting him in the machine, galvanized at his coming.

“Hot work?” the custom’s agent asked.

“It may be very hot; but we have the start of him,” Trant replied as the car shot ahead. “Welter himself is coming to the docks to-night, I think, by the look of him! He left just before me, but must drop his friends first. He suspects, now, that we know; but he cannot be aware that we know that they are unloading to-night. He probably counts on our waiting to catch them at the cheating to-morrow morning. So he’s going over to-night himself if I size him up right, to order it stopped and remove all traces before we can prove anything. Is Dickey waiting?”

“When you give the word he is to take us in and catch them at it. If Welter himself comes, as you think, it will not change the plan?” Rentland asked.

“Not at all,” said Trant, “for I have him already. He will deny everything, of course, but it’s too late now!”

The big car, with unchecked speed, swung down Broadway, slowed after a twenty-minutes’-run to cross the Brooklyn Bridge, and, turning to the left, plunged once more at high speed into the narrower and less well-kept thoroughfares of the Brooklyn water front. Two minutes later it overtook a little electric coupé, bobbing excitedly down the sloping street. As they passed it, Trant caught sight of the illuminated number hanging at its rear, and shouted suddenly to the chauffeur, who brought his car to a stop a hundred feet beyond. The psychologist, leaping down, ran into the road before the little car.

“Miss Rowan,” he cried to its single occupant, as it came to a stop. “Why are you coming over here at this time to-night?”

“Oh, it’s you, Mr. Trant!” She opened the door, showing relief in the recognition. “Oh, I’m so worried. I’m on my way to see father; for a telegram just came to him from Boston; mother opened it, and told me to take it to him at once, as it was most important. She wouldn’t tell me what it was about, but it excited her a great deal. Oh, I’m so afraid it must be about Will and that was why she wouldn’t tell me.”

“From Boston?” Trant pressed quickly. Having her confidence, the girl nervously read the telegram aloud by the light of the coupé’s side lamps. It read:

*Police have taken your friend out of our hands; look out for trouble. Wilson.*

“Who is Wilson?” Trant demanded.

“I am not sure it is the man, but the captain of the *Elizabethan Age* is a friend of father’s named Wilson!”

“I can’t help you then, after all,” said Trant, springing back to his powerful car. He whispered a word to the chauffeur which sent it driving ahead through the drifts at double its former speed, leaving the little electric coupé far behind. Ten minutes later Rentland stopped the motor a block short of a great lighted doorway which suddenly showed in a length of dark, lowering buildings which lay beside the American Commodities Company’s Brooklyn docks.

“Now,” the secret agent volunteered, “it is up to me to find Dickey’s ladder!”

He guided Trant down a narrow, dark court which brought them face to face with a blank wall; against this wall a light ladder had been recently placed. Ascending it, they came into the dock inclosure. Descending again by a dozen rickety, disused steps, they reached a darker, covered teamway and hurried along it to the docks. Just short of the end of the open dock houses, where a string of arc lamps threw their white and flickering light upon the huge, black side of a moored steamer, Rentland turned into a little shed, and the two came suddenly upon Customs Officer Dickey.

“This one next to us,” the little man whispered, eagerly, to Trant, as he grasped his hand, “is the scale house where whatever is being done is done—No. 3.”

In and out of the yawning gangways of the steamer before them struggling lines of sweating men were wheeling trucks loaded with bales of

tobacco. Trant looked first to the left, where the bales disappeared into the tobacco warehouse; then to the right, where, close at hand, each truck-load stopped momentarily on a scale platform in front of the low shed which bore the number Dickey indicated in a large white figure.

“Who’s that?” asked Trant as a small figure, hardly five feet tall, cadaverous, beetle-browed, with cold, malignant, red-lidded eyes passed directly under the arc light nearest them.

“Rowan, the dock superintendent!” Dickey whispered.

“I knew he was small,” Trent returned with surprise, “but I thought surely he must have some fist to be the terror of these dock laborers.”

“Wait!” Rentland, behind them, motioned.

A bloated, menacing figure had suddenly swung clear of the group of dock laborers—a roustabout, goaded to desperation, with a fist raised against his puny superior. But before the blow had fallen another fist, huge and black, struck the man over Rowan’s shoulder with a hammer. He fell, and the dock superintendent passed on without a backward glance, the giant negro who had struck the blow following in his footsteps like a dog.

“The black,” Rentland explained, “is Rowan’s bodyguard. He needs him.”

“I see,” Trant replied. “And for Miss Rowan’s sake I am glad it was that way,” he added, enigmatically.

Dickey had quietly opened a door on the opposite side of the shed; the three slipped quickly through it and stepped unobserved around the corner of the coffee warehouse to a long, dark, and narrow space. On one side of them was the rear wall of scale house No. 3, and on the other the engine room where Landers’ body had been found. The single window in the rear of No. 3 scale house had been whitewashed to prevent anyone from looking in from that side; but in spots the whitewash had fallen off in flakes. Trant put his eye to one of these clear spots in the glass and looked in.

The scale table, supported on heavy posts, extended across almost the whole front of the house, behind a low, wide window, which permitted those seated at the table to see all that occurred on the docks. Toward the right end of the table sat the Government weigher; toward the left end, and separated from him by almost the whole length of the table, sat the company checker. They were the only persons in the scale house. Trant, after his first rapid survey of the scene, fixed his eye upon the man who had

taken the place which Landers had held for three years, and Morse for a few days afterwards—the company checker. A truck-load of tobacco bales was wheeled on to the scales in front of the house.

“Watch his left knee,” Trant whispered quickly into Dickey’s ear at the pane beside him, as the balance was being made upon the beam before them. As he spoke, the Government weigher adjusted the balance and they saw the left leg of the company checker pressed hard against the post which protected the scale rod at his end. Both men in the scale house then read aloud the weight and each entered it in the book on the table in front of him. A second truckful was wheeled on to the scale; and again, just as the Government weigher fixed his balances, the company checker, so inconspicuously as to make the act undiscoverable by anyone not looking for that precise move, repeated the operation. With the next truck they saw it again. The psychologist turned to the others. Rentland, too, had been watching through the pane and nodded his satisfaction.

Immediately Trant dashed open the door of the scale house, and threw himself bodily upon the checker. The man resisted; they struggled. While the customs men protected him, Trant, wrenching something from the post beside the checker’s left knee, rose with a cry of triumph. Then the psychologist, warned by a cry from Rentland, leaped quickly to one side to avoid a blow from the giant negro. His quickness saved him; still the blow, glancing along his cheek, hurled him from his feet. He rose immediately, blood flowing from a superficial cut upon his forehead where it had struck the scale house wall. He saw Rentland covering the negro with a revolver, and the two other customs men arresting, at pistol point, the malignant little dock superintendent, the checker, and the others who had crowded into the scale house.

“You see!” Trant exhibited to the customs officers a bit of bent wire, wound with string, precisely like that the girl had given him that morning and he had used in his test of Welter the hour before. “It was almost exactly as we knew it must be! This spring was stuck through a hole in the protecting post so that it prevented the balance beam from rising properly when bales were put on the platform. A little pressure just at that point takes many pounds from each bale weighed. The checker had only to move his knee, in a way we would never have noticed if we were not watching for it, to work the scheme by which they have been cheating for ten years! But the

rest of this affair," he glanced at the quickly collecting crowd, "can best be settled in the office."

He led the way, the customs men taking their prisoners at pistol point. As they entered the office, Rowan first, a girl's cry and the answering oath of her stepfather told that the dock superintendent's daughter had arrived. But she had been almost overtaken by another powerful car; for before Trant could speak with her the outer door of the office opened violently and President Welter, in an automobile coat and cap, entered.

"Ah! Mr. Welter, you got here quickly," said Trant, meeting calmly his outraged astonishment at the scene. "But a little too late."

"What is the matter here?" Welter governed his voice commandingly. "And what has brought *you* here, from your phrenology?" he demanded, contemptuously, of Trant.

"The hope of catching red-handed, as we have just caught them, your company checker and your dock superintendent defrauding the Government," Trant returned, "before you could get here to stop them and remove evidences."

"What raving idiocy is this?" Welter replied, still with excellent moderation. "I came here to sign some necessary papers for ships clearing, and you—"

"I say we have caught your men red-handed," Trant repeated, "at the methods used, with your certain knowledge and under your direction, Mr. Welter, to steal systematically from the United States Government for—probably the last ten years. We have uncovered the means by which your company checker at scale No. 3, which, because of its position, probably weighs more cargoes than all the other scales together, has been lessening the apparent weights upon which you pay duties."

"Cheating here under my direction?" Welter now bellowed indignantly. "What are you talking about? Rowan, what is he talking about?" he demanded, boldly, of the dock superintendent; but the cadaverous little man was unable to brazen it out with him.

"You need not have looked at your dock superintendent just then, Mr. Welter, to see if he would stand the racket when the trouble comes, for which you have been paying him enough on the side to keep him in electric motors and marble statuettes. And you cannot try now to disown this crime with the regular president-of-corporation excuse, Mr. Welter, that you never

knew of it, that it was all done without your knowledge by a subordinate to make a showing in his department; and do not expect, either, to escape so easily your certain complicity in the murder of Landers, to prevent him from exposing your scheme and since—even the American Commodities Company scarcely dared to have two ‘accidental deaths’ of checkers in the same month—the shanghaiing of Morse later.”

“My complicity in the death of Landers and the disappearance of Morse?” Welter roared.

“I said the murder of Landers,” Trant corrected. “For when Rentland and Dickey tell to-morrow before the grand jury how Landers was about to disclose to the Customs Department the secret of the cheating in weights; how he was made afraid by Rowan, and later was about to tell anyway and was prevented only by a most sudden death, I think murder will be the word brought in the indictment. And I said shanghaiing of Morse, Mr. Welter. When we remembered this morning that Morse had disappeared the night the *Elizabethan Age* left your docks and you and Rowan were so intensely disgusted at its having had to put into Boston this morning instead of going on straight to Sumatra, we did not have to wait for the chance information this evening that Captain Wilson is a friend of Rowan’s to deduce that the missing checker was put aboard, as confirmed by the Boston harbor police this afternoon, who searched the ship under our instructions.” Trant paused a moment; again fixed the now trembling Welter with his eye, and continued: “I charge your certain complicity in these crimes, along with your certain part in the customs frauds,” the psychologist repeated. “Undoubtedly, it was Rowan who put Morse out of the way upon the *Elizabethan Age*. Nevertheless, you knew that he was a prisoner upon that ship, a fact which was written down in indelible black and white by my tests of you at the Stuyvesant Institute two hours ago, when I merely mentioned to you ‘a prisoner in the *Elizabethan Age*.’

“I do not charge that you, personally, were the one who murdered Landers; or even that Rowan himself did; whether his negro did, as I suspect, is a matter now for the courts to decide upon. But that you undoubtedly were aware that he was not killed accidentally in the engine room, but was killed the Wednesday night before and his body hidden under the coffee bags, as I guessed from the fibres of coffee sacking on his clothes, was also registered as mercilessly by the psychological machines when I showed you merely the picture of a pile of coffee sacks.

“And last, Mr. Welter, you deny knowledge of the cheating which has been going on, and was at the bottom of the other crimes. Well, Welter,” the psychologist took from his pocket the bent, twine-wound wire, “here is the ‘innocent’ little thing which was the third means of causing you to register upon the machines such extreme and inexplicable emotion; or rather, Mr. Welter, it is the companion piece to that, for this is not the one I showed you, the one given to Morse to use, which, however, he refused to make use of; but it is the very wire I took to-night from the hole in the post where it bore against the balance beam-rod to cheat the Government. When this is made public to-morrow, and with it is made public, too, and attested by the scientific men who witnessed them, the diagram and explanation of the tests of you two hours ago, do you think that you can deny longer that this was all with your knowledge and direction?”

The big, bull neck of the president swelled, and his hands clenched and re clenched as he stared with gleaming eyes into the face of the young man who thus challenged him.

“You are thinking now, I suppose, Mr. Welter,” Trant replied to his glare, “that such evidence as that directly against you cannot be got before a court. I am not so sure of that. But at least it can go before the public to-morrow morning in the papers, attested by the signatures of the scientific men who witnessed the test. It has been photographed by this time, and the photographic copies are distributed in safe places, to be produced with the original on the day when the Government brings criminal proceedings against you. If I had it here I would show you how complete, how merciless, is the evidence that you knew what was being done. I would show you how at the point marked 1 on the record your pulse and breathing quickened with alarm under my suggestion; how at the point marked 2 your anxiety and fear increased; and how at 3, when the spring by which this cheating had been carried out was before your eyes, you betrayed yourself uncontrollably, unmistakably. How the volume of blood in your second finger suddenly diminished, as the current was thrown back upon your heart; how your pulse throbbed with terror; how, though unmoved to outward appearance, you caught your breath, and your laboring lungs struggled under the dread that your wrong doing was discovered and you would be branded—as I trust you will now be branded, Mr. Welter, when the evidence in this case and the testimony of those who witnessed my test are produced before a jury—a deliberate and scheming thief!”

“—— ——— you!” The three words escaped from Welter’s puffed lips. He put out his arm to push aside the customs officer standing between him and the door. Dickey resisted.

“Let him go, if he wants to!” Trant called to the officer. “He can neither escape nor hide. His money holds him under bond!”

The officer stepped aside, and Welter, without another word, went into the hall. But when his face was no longer visible to Trant, the hanging pouches under his eyes grew leaden gray, his fat lips fell apart loosely, his step shuffled; his mask had fallen!

“Besides, we need all the men we have, I think,” said Trant, turning back to the prisoners, “to get these to a safe place. Miss Rowan,” he turned then and put out his hand to steady the terrified and weeping girl, “I warned you that you had probably better not come here to-night. But since you have come and have had pain because of your stepfather’s wrong doings, I am glad to be able to give you the additional assurance, beyond the fact, which you have heard, that your fiancé was not murdered, but merely put away on board the *Elizabethan Age*; that he is safe and sound, except for a few bruises, and, moreover, we expect him here any moment now. The police are bringing him down from Boston on the train which arrives at ten.”

He went to the window and watched an instant, as Dickey and Rentland, having telephoned for a patrol, were waiting with their prisoners. Before the patrol wagon appeared, he saw the bobbing lanterns of a lurching cab that turned a corner a block away. As it stopped at the entrance, a police officer in plain clothes leaped out and helped after him a young man wrapped in an overcoat, with one arm in a sling, pale, and with bandaged head. The girl uttered a cry, and sped through the doorway. For a moment the psychologist stood watching the greeting of the lovers. He turned back then to the sullen prisoners.

“But it’s some advance, isn’t it, Rentland,” he asked, “not to have to try such poor devils alone; but, at last, to capture the man who makes the millions and pays them the pennies—the man higher up?”

THE END

Transcriber’s Note: This story appeared in the December 1926 issue of *Amazing Stories* magazine.



\*\*\* END OF THE PROJECT GUTENBERG EBOOK THE MAN  
HIGHER UP \*\*\*

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

# THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at [www.gutenberg.org/license](http://www.gutenberg.org/license).

## **Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works**

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg<sup>TM</sup> License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website ([www.gutenberg.org](http://www.gutenberg.org)), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

## 1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

## **Section 2. Information about the Mission of Project Gutenberg**

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at [www.gutenberg.org](http://www.gutenberg.org).

### **Section 3. Information about the Project Gutenberg Literary Archive Foundation**

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at [www.gutenberg.org/contact](http://www.gutenberg.org/contact)

### **Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation**

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

## **Section 5. General Information About Project Gutenberg electronic works**

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:  
[www.gutenberg.org](http://www.gutenberg.org).

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.